

Stereo. H C J D A 38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

ICA No.145/2021

Dr. Shamim Akhtar **Versus** Principal Secretary to Chief
Minister Punjab etc.

J U D G M E N T

Date of Hearing:	28.06.2021
Appellant by:	Syed Riaz ul Hassan Gillani, Advocate.
Province by:	Mr. Muhammad Aurangzeb Khan, AAG.
Respondent No.9 by:	Mr. Muhammad Aurangzeb Gillani, Advocate. Syed Nasir Abbas Bokhari, Advocate.

ANWAAR HUSSAIN, J. This Intra-Court Appeal (hereinafter “the ICA”), is directed against order dated 16.03.2021 passed by the learned Judge-in-Chambers whereby Writ Petition No. 4167/2021 filed by the appellant against her repatriation to her parent department was dismissed, on the ground that the same is not maintainable being barred under Article 212 of the Constitution of Islamic Republic of Pakistan, 1973 (hereinafter “the Constitution”).

2. Precise facts of the case are that in response to an advertisement made by respondent No.3 i.e., Secretary, Higher Education Department, the appellant, who was working in the School Education Department, applied for the post of Chairman, Board of Intermediate and Secondary Education, Multan (hereinafter called “the Board”) through proper channel. After due process, the appellant was selected and appointed as Chairperson of the Board, on deputation basis for a period of three years *vide* notification dated 03.07.2019. However, she was repatriated to her parent department *vide* order dated 15.03.2021 by the competent authority in terms of Section 14.2 of the Punjab Boards of Intermediate and Secondary Education Act, 1976 (hereinafter “the Act 1976”). The

appellant assailed the said letter in Writ Petition No. 4167/2021, which was dismissed by the learned Judge-in-Chambers through order dated 16.03.2021, which has been impugned in this ICA.

3. Learned counsel for the appellant, contends that since the appellant was appointed on deputation basis for a period of three years as a result of competitive process by the Board, she was no more civil servant and hence, bar contained in Article 212 of the Constitution is not attracted. Places reliance on S. Masood Abbas Rizvi v Federation of Pakistan through Secretary Establishment and others (2014 SCMR 799). He avers that repatriation order dated 15.03.2021 was passed by the Chief Minister, Punjab who was not competent to pass order of her repatriation. Learned counsel further submits that the appellant was not afforded opportunity of hearing before her repatriation, therefore, the order impugned in the writ petition was against the principle of *audi alteram partem* and in negation of Article 10-A of the Constitution.

4. Conversely, learned AAG assisted by learned counsel for respondent No.9 vehemently controverts this ICA and fully supports the impugned order. He submits that being on deputation does not change the status of the appellant as a civil servant. He avers that the appellant is a civil servant for all intents and purposes, therefore, the Chief Minister Punjab was the competent authority to repatriate the appellant to her parent department, therefore, no illegality was committed by him while passing order dated 15.03.2021. He asserts that this ICA has no substance and merits dismissal.

5. Arguments heard. Record perused.

6. The core issues which require adjudication are as follows:

- i. Interpretation of Section 14 of the Act 1976, whereunder the order dated 15.03.2021 was passed and the appellant was repatriated; and
- ii. To examine whether a civil servant working for the Province of Punjab when serves on deputation, in an autonomous body such as the Board, loses the status of being civil servant in terms of S. Masood Abbas supra?

7. The main thrust of the learned counsel for the appellant is that order dated 15.03.2021 has been passed by the Chief Minister who is not competent to pass the same in terms of Section 14 of the Act of 1976 and since the said order has not been passed by appellant's parent department, therefore, the same cannot be termed as an order passed against the appellant as a civil servant. This argument of the learned Counsel for the appellant is misconceived inasmuch as order dated 15.03.2021, under Section 14.2 of the Act, 1976, has been issued by the Higher Education Department, Government of the Punjab and not the borrowing agency i.e., the Board. In-fact, the advertisement for the post of the Chairperson in furtherance of which the appellant applied and was appointed as an officer of the Board, was made by the Higher Education Department, Government of the Punjab and not the Board. Section 14.2 contemplates as under:

“14.2 The officers of the Board shall hold office during the pleasure of the Controlling Authority from the date of notification of their appointment and shall be eligible for reappointment for such further period not exceeding three years, as may be specified in the order of re-appointment; provided that the Controlling Authority may, at any time review the work of the officers of the Board and if on such review it is satisfied that in the interest of the Board, or for any other sufficient cause, it is necessary to do so, it may, after giving an officer an opportunity to show cause against the proposed action, dismiss or remove him from service or reduce the term of office of any such officer by such period as it may determine.”

There are two parts of Section 14.2. The first part relates to the fact that the officers of the Board are entitled to hold the office at the pleasure of the Controlling Authority, which means that there is no vested right to continue for the entire period of deputation. In the second part, it is contemplated that in case there is any dissatisfaction *qua* performance of the officer of the Board, show cause notice is to be issued to such officer before an adverse order is taken against him. Admittedly, in the instant case, neither any adverse action has been taken against the appellant nor adverse remarks have been passed against her. During the course of

arguments, learned counsel for the appellant has candidly admitted that no stricture has been passed against the appellant, which can be injurious to her future service as a civil servant. In-fact, the appellant at present is working as DEO since 20.05.2021 under the supervision and control of her parent department. The argument that the appellant was no more a civil servant during the period of her deputation is totally baseless. In the instant case, admittedly, the advertisement for the post of Chairman/Chairperson of the Board contemplates that both civil servant as well as private persons could apply for the said post. The appellant, in her capacity as a civil servant, made application for grant of an NOC to apply for the said post through proper channel. Meaning thereby, it was her status of a civil servant that entitled her to compete and get selected as Chairperson of the Board. The argument on behalf of the appellant that she is no more civil servant is conjured out of thin air and based on fallacy as Section 14.3 of the Act, 1976 envisages an inseparable link between a civil servant on deputation in the Board with his/her status as a civil servant in the following manner:

“14.3 Notwithstanding anything contained in sub section (2), a Civil servant, if appointed on the deputation as an officer of the Board, shall cease to hold office in the Board on the date of his retirement from Civil Service.”

(Emphasis supplied)

A bare reading of Section 14.3 indicates that when a civil servant is appointed on deputation as an officer of the Board by virtue of being a civil servant, he ceases to be the officer of the Board if he retires from the civil service. Meaning thereby that his/her right to continue for the period of deputation is irrelevant and moment he/she retires from service, his/her appointment as officer of the Board also comes to an end. It is worth mentioning that there is no distinction in the Act, 1976 as to appointment by way of deputation on the basis of transfer or as a result of any competitive selection process. Hence, the bar contained in Article 212 of the Constitution is fully attracted in the present case and the writ petition was not maintainable. Reliance on S. Masood Abbas *supra* too is also misconceived. In the said case officer who was in

federal civil service was appointed on deputation in Export Processing Zone Authority and in the said case, no provision in *pari materia* to Section 14.3 of the Act, 1976 existed in the Export Processing Zone Authority Ordinance, 1980. Even otherwise, in S. Masood Abbas supra the august Supreme Court held that there is no vested right of the deputationist to remain on the post of deputation for the stipulated period and parent department is not obligated to assign any reason for the repatriation. Moreover, the august Supreme Court of Pakistan, in “Dr. Shafi-ur-Rehman Afridi v. C.D.A. Islamabad through Chairman and others” (2010 SCMR 378) has clearly held that no deputationist, by any stretch of imagination and in absence of any specific provision of law, can ask to serve the total period of deputation in the borrowing agency. It has been further held that such civil servant can be repatriated by the Competent Authority in the interest of exigency of service as and when so desired and such order of the competent authority cannot be questioned, which answers the misconceived argument on behalf of the appellant that she has not been issued any notice before being repatriated. Moreover, it is settled law that the period of deputation can at the best be equated to that of an expression of maximum period which can be curtailed or extended by the Competent Authority and no legal or vested rights whatsoever are available to a deputationist *qua* tenure of deputation. Reliance is placed on Prof. M. Ashraf Khan Niazi v. Chairman, Board of Governors, Allama Iqbal Medical College/Jinnah Hospital, Lahore and 2 others (2003 PLC (C.S.) 243) and S. Masood Abbas Rizvi v Federation of Pakistan and others (2014 SCMR 799). It is also settled law that every civil servant is bound to serve anywhere within or outside the province in any post under the Government of the Punjab, Federal Government, any other provincial government or local authority or corporation or any other body set up or established by any such Government, which is evident from Section 9 of the Punjab Civil Servants Act, 1974 (hereinafter “the Act”). Similarly, Section 2(b) (i) of the Act defines a civil servant in the following manner: -

“2. Definitions. (1) In this Act, unless there is anything repugnant in the subject or context, --

(a)

(b) ‘Civil Servant’ means a person who is a member of a civil service of the Province or who holds a civil post in connection with affairs of the Province, but does not include-

(i) a person who is on deputation to the province from the Federation or any other province or authority;”

(emphasis supplied).

8. The appellant is not only a member of the civil service of the Province but also held the post of Chairperson of the Board, which is working in connection with the affairs of the province. Therefore, as to the extent of the definition of civil servant, the petitioner is a civil servant for all intents and purposes. The exclusion clause attached to definition provided in Section 2(1)(b) of the Act reads that civil servant shall not include a person who is working on deputation to the Province from the Federation or any other Province or authority. The conditions laid down in the said exclusion clause are that a person working on deputation in the province shall not be a civil servant if sent to work on the said post from such province to the Federation, any other Province or any authority which is not the case in the instant ICA. Furthermore, the order in respect of a deputationist during the period of his/her deputation, which may be amenable to constitutional jurisdiction of this Court where bar under Article 212 is not attracted can be one which is passed by the borrowing agency *qua* the terms of the deputationist while serving in the borrowing agency and not the order of repatriation, which is prerogative of the parent department/government to pass at any point of time.

9. The argument that the repatriation order is not issued by the competent person is also misconceived as ‘the Government’ is defined as the Controlling Authority and the Higher Education Department has asked the Services & General Administration Department of the Government to issue necessary notification. Suffice to state that it is the Services & General Administration Department of the Government which issued the appointment notification of the appellant dated 03.07.2019.

10. In view of the above discussion, we find no illegality in the impugned order passed by the learned Judge-in-Chambers and the instant ICA, being devoid of merits is **dismissed**.

(ABID AZIZ SHEIKH)
Judge

(ANWAAR HUSSAIN)
Judge

Approved for reporting.

Judge

Akram